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Case Number: 25TRCV02938 Hearing Date: September 10, 2026 Dept: P

Motion to Compel Arbitration and Stay Proceedings

Moving Party: Defendant Public Storage Operating Company

Responding Party: None

RULING

The court considered the moving papers. Defendant's Motion to Compel Arbitration is GRANTED.

PROCEDURAL BACKGROUND

On August 28, 2025, Plaintiff Errica Madkins ("Plaintiff") filed a complaint against Defendant Public Storage ("Defendant") and DOES 1 through 50, inclusive, alleging two causes of action for: (1) Premises Liability; and (2) General Negligence.

On April 29, 2026, Defendant filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that on September 12, 2023, she was at the Public Storage facility located in Hawthorne, California when she was provided a defective storage cart by Defendant's employee. (Complaint, p. 4.) Plaintiff alleges that the cart contained an unattached board which flipped backward, striking Plaintiff's legs and catching her finger, causing Plaintiff to stumble backward. (Complaint, p. 4.) Plaintiff alleges that she sustained severe injuries as a result of the incident. (Complaint, p. 4.)

LEGAL STANDARD

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc. Section 1281.2.) California law favors enforcement of valid arbitration agreements. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a

preponderance of the evidence, any fact necessary to its defense. (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 356-357.)

The Federal Arbitration Act (“FAA”) applies to any contract evidencing a transaction involving interstate commerce which contains an arbitration clause. (Wolls v. Superior Court (2005) 127 Cal.App.4th 197, 211.) Section 2 of the FAA provides that arbitration provisions shall be enforced, save upon grounds as exist at law or in equity for the revocation of any contract. (Ibid.) A state court may refuse to enforce an arbitration clause on the basis of generally applicable contract defenses, such as fraud, duress, or unconscionability. (Ibid.) A state court, however, may not defeat an arbitration clause by applying state laws applicable only to arbitration provisions. (Ibid.)

For the FAA to apply, a contract must involve interstate commerce. (Ibid.) When it applies, the FAA preempts any state law rule that stands as an obstacle to the accomplishment of the FAA’s objectives. (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 238.) A party asserting FAA preemption bears the burden to present evidence establishing a contract with the arbitration provision affects interstate commerce, and the failure to do so renders the FAA inapplicable. (Ibid.) Evidence must be presented, in the form of declarations or other evidence, that establishes that the contract affects interstate commerce. (Ibid.) “[S]ince arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963.)

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) the right to compel arbitration has been waived by the petitioner; or (b) grounds exist for the revocation of the agreement.” (Code Civ. Proc. Section 1281.2(a-b).) Thus, in assessing a motion to compel arbitration, the moving party “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the [motion] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284, citation omitted.)

“If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. Section 1281.4.)

DISCUSSION

Moving Party’s Argument

Defendant argues that the Rental Agreement entered into by Plaintiff on September 12, 2023 contains a binding arbitration provision, and Plaintiff’s causes of action fall within the arbitration agreement’s broad scope. Defendant argues that Plaintiff’s causes of action arise out of an alleged incident at Defendant’s facility while Plaintiff was a customer of Defendant and was renting a storage unit, and thus Plaintiff’s claims arise out of, are in connection with, and relate to the relationship between Plaintiff and Defendant.

Merits of the Motion

A. Existence of a Valid Arbitration Agreement

The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code of Civ. Proc. Section 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for

arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Court, rule 3.1330.)

Defendant moves to compel arbitration on the grounds that Plaintiff entered into a rental agreement with Plaintiff on September 12, 2023 (the “Rental Agreement”) which contains a binding arbitration provision. In support of its motion, Defendant offers the declaration of Hitesh Bhakta (“Bhakta”), a District Manager employed by Defendant. (Bhakta Decl., ¶ 1.) Bhakta declares that Defendant requires all customers to enter into a written rental agreement, and offers a copy of the September 12, 2023 Rental Agreement between Plaintiff and Defendant as Exhibit A. (Bhakta Decl., ¶ 3; Exh. A.)

The court has reviewed Exhibit A and has identified Section 6.2, titled “BINDING ARBITRATION,” which states the following:

“Both you and Public Storage agree to arbitrate any and all disputes or claims arising out of, in connection with, or in any way relating to the relationship between you and us, including claims that arose before the signing of this or any prior lease or rental agreement and the attached Addendum and any claims that may arise after the termination of this Rental Agreement and the attached Addendum, including, but not limited to, claims relating to advertising...”

(Bhakta Decl., Exh. A, p.3.)

The court also observes Section 6.8 of the Rental Agreement, which states in bold, “THIS ARBITRATION PROVISION IS OPTIONAL.” (Bhakta Decl., Exh. A, p. 4.) Section 6.8 further provides, “You may decline this agreement to arbitrate by sending written and signed notice to us...within 30 days of signing this Rental Agreement.” (Bhakta Decl., Exh. A, p. 4.) The Bhakta Declaration is silent as to whether this opt-out provision was invoked by Plaintiff, however, the court notes that the instant motion is unopposed.

Additionally, the court notes that Exhibit A reflects that the Rental Agreement was digitally signed. (Bhakta Decl. Exh. A, p. 6.) The court finds that the language of Section 6.2 is broad enough to encompass the parties’ dispute.

Therefore, the court finds that Defendant has met its initial burden of showing that there is a valid arbitration agreement between the parties. Next, the burden shifts to Plaintiff to establish any facts necessary to show that the parties’ arbitration agreement is unenforceable.

B. Grounds for Compelling Arbitration

The court has found that Defendant has met its burden of proving that an arbitration agreement exists between the parties. Given that the instant motion is unopposed, Plaintiff has not established by a preponderance of the evidence any fact necessary to Plaintiff’s defense.

Accordingly, Defendant’s Motion to Compel Arbitration is GRANTED.

CONCLUSION

Based on the foregoing, Defendant’s Motion to Compel Arbitration is GRANTED. The court STAYS this action pending conclusion of the arbitration proceedings.

Status Conference Re: Arbitration is scheduled for September 17, 2027 at 10:00 AM.

Moving party is ordered to give notice of ruling.